

SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY

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JAY GONZALEZ,

Plaintiff,

-against-

THE CITY OF NEW YORK, NYPD OFFICER
EDWARD BARRETT (Shield # 9973),
and NYPD OFFICERS JOHN and JANE DOE #'s 1-10
(names and numbers unknown at this time), and
Other Unidentified members of the New York City
Police Department,

Defendants.

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SUMMONS

Basis of Venue:
Place of Incident

Plaintiff Designates
Bronx County
as the place of trial

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
October 8, 2021

Respectfully submitted,

/s/ Sydney O'Hagan
Sydney O'Hagan, Esq.
40 Exchange Place
Suite 1000
New York, New York 10005
(774) 218-3461
sydney.ohagan@gmail.com

TO:

CITY OF NEW YORK: CORPORATION COUNSEL, 100 Church Street, New York, NY 10007
EDWARD BARRETT (Shield # 9973), 52nd Precinct, 3016 Webster Avenue, Bronx, NY 10467

SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY

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JAY GONZALEZ,

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NYPD OFFICER
EDWARD BARRETT (Shield # 9973),
and NYPD OFFICERS JOHN and JANE DOE #'s 1-10
(names and numbers unknown at this time), and
Other Unidentified members of the New York City
Police Department,

Defendants.

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Plaintiff **Jay Gonzalez**, by his attorney, SYDNEY O'HAGAN, ESQ., as and for the Complaint herein, alleges
upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983 and the rights secured by the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution the laws of the State of New York. Plaintiff was unlawfully arrested by the defendants. Plaintiff was deprived of his federal constitutional rights, state constitutional rights, and common law rights when the individually named police defendants subjected him to, among other things, false arrest, unlawful search and seizure, negligence, gross negligence, intentional and negligent infliction of emotional distress and implementation and continuation of an unlawful municipal policy, practice, and custom. Plaintiff seeks compensatory and punitive damages, declaratory relief, an award of costs and attorney's fees and such other relief as the Court deems just and proper.

PARTIES

2. Plaintiff is a resident of the State of Connecticut, Fairfield County.
3. Defendant City of New York is a municipal corporation organized under the laws of the State of New York, which violated plaintiff's rights as described herein.
4. NYPD OFFICER EDWARD BARRETT, assigned Shield # 9973, employed with the 52nd Precinct, is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
5. NYPD OFFICER EDWARD BARRETT (Shield # 9973) is being sued in his individual capacity and official capacity.
6. Police Officer John Doe Number 1 is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
7. Police Officer John Doe #1 is being sued in his individual capacity and official capacity.
8. New York Police Officers John and Jane Doe #'s 2-10 are and were at all times relevant herein an officer, employee, and agent of the New York City Police Department.
9. Police Officers John and Jane Doe #'s 2-10 are being sued in his/her individual capacity and official capacity.
10. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents, and employees of the New York City Police

Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

11. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as agents in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.
12. Plaintiff in furtherance of his State causes of action filed a timely Notice of Claim upon the City of New York in compliance with Municipal Law Section 50.
13. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claim.
14. The City of New York held a 50(h) hearing examination of Plaintiff on September 5, 2019.

STATEMENT OF FACTS

15. On April 19, 2019 at approximately 3:00 p.m. in the area of 213th Street and Jerome Avenue in Bronx County, New York, numerous police officers, both in uniform and in plain clothes, from the 52nd Precinct, and other unknown police commands, including upon information and belief, defendant NYPD Officer Edward Barrett (Shield # 9973) and P.O. John and Jane Does #1-10, and other as yet unknown police officers, at times acting in concert and at times acting independently, committed the following illegal acts against Plaintiff.
16. On April 19, 2019 at approximately 3:00 p.m. in the area of 213th Street and Jerome Avenue in the Bronx, Plaintiff had just pulled his motorcycle into a private parking lot owned by his friend. At all times prior to stopping and parking his motorcycle in this parking lot, Plaintiff had been

operating his motorcycle in a safe and legal manner. Plaintiff denies that he was speeding, driving through a crosswalk in a manner that required pedestrians to avoid being struck, crossing a double yellow line, or in any other way operating his motorcycle in a reckless manner prior to his arrest.

17. Once Plaintiff parked his motorcycle, multiple defendant NYPD officers, including NYPD Officer Edward Barrett (Shield # 9973) approached Plaintiff and requested his driver's license, and the registration and insurance paperwork for his motorcycle. Plaintiff was compliant at all times and provided the requested paperwork upon demand. Defendant NYPD Officers determined that Plaintiff's license was valid, and his registration and insurance were proper, rendering his motorcycle street legal.
18. Once the defendant officers approached Plaintiff, he was not free to leave. Despite having committed no offenses or violations, Plaintiff was subject to an illegal detention and arrest. Plaintiff was not told what he was arrested for at that time.
19. Plaintiff was transported to the 52nd Precinct, where he was detained for approximately seven hours. While jailed at the 52nd Precinct, Plaintiff was informed that he was being charged with Reckless Endangerment in the Second Degree, Reckless Driving and Unlawful Possession of Marijuana. Plaintiff again denies engaging in any reckless, dangerous, or illegal conduct while operating his motorcycle. Plaintiff also denies possessing marijuana at any time prior to or at the time of his illegal stop and arrest.
20. After seven hours of illegal detention within the confines of the 52nd Precinct, Plaintiff was transferred to Bronx Central Booking, where he remained for an additional 13 hours.
21. At Plaintiff's arraignment on April 20, 2019, Plaintiff received an Adjournment in Contemplation of Dismissal under New York C.P.L. § 170.56. The case was dismissed and sealed on February 1, 2020.

22. During his confinement at the 52nd Precinct at Bronx Central Booking, Plaintiff was subjected to depraved, filthy and inhumane conditions. In total, he was illegally detained for 20 hours as a result of his false arrest.
23. As a direct result of Plaintiff's false arrest, he missed his first day of work at his new job as a sales person at Stamford Motorsports, in Stamford, CT, which in turn resulted in a one week suspension from the position. Plaintiff was scheduled to work 40 hours for the week, with a base pay rate of \$12 in addition to a commission of 13% of all sales he completed.

FEDERAL CLAIMS

FIRST CLAIM FOR RELIEF

DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983

24. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
25. All of the aforementioned acts of defendants EDWARD BARRETT and NYPD OFFICERS JOHN and JANE DOE #1-10, their agents, servants, and employees, were carried out under the color of state law.
26. All of the aforementioned acts deprived Plaintiff of his rights, privileges, and immunities guaranteed to citizens of the United States by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.
27. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.
28. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules

of the City of New York, the New York City Police Department, all under the supervision of ranking officers of said department.

29. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

SECOND CLAIM FOR RELIEF

FALSE ARREST UNDER 42 U.S.C. § 1983

30. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
31. As a result of the aforesaid conduct by defendants EDWARD BARRETT and NYPD OFFICERS JOHN and JANE DOE #1-10, Plaintiff was subjected to an illegal, improper, and false arrest by the defendants EDWARD BARRETT and NYPD OFFICERS JOHN and JANE DOE #1-10, taken into custody and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.
32. As a result of the foregoing, Plaintiff's liberties were restricted for an extended period of time, he was put in fear for his safety, and was humiliated, searched, and subjected to handcuffing and other physical restraints, without probable cause.

THIRD CLAIM FOR RELIEF

UNLAWFUL SEARCH UNDER 42 U.S.C. § 1983

33. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
34. Plaintiff was searched by defendants EDWARD BARRETT and NYPD OFFICERS JOHN and JANE DOE #1-10 without an individualized reasonable suspicion that Plaintiff had committed any

crime or was in possession of any illicit contraband, illegal weapons, or any other illegal substances.

35. As a result of the aforesaid conduct by defendants EDWARD BARRETT and NYPD OFFICERS JOHN and JANE DOE #1-10, Plaintiff's person was illegally and improperly searched without consent, a valid warrant, probable cause, and a specific articulable factual basis supporting a reasonable suspicion and/or probable cause to believe Plaintiff was in possession of contraband or any illegal substance as set forth in the Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States. Plaintiff repeatedly told defendants that he was not consenting to a search at the time of his arrest.
36. As a result of the foregoing, Plaintiff was deprived of his Constitutional rights and has suffered mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

FOURTH CLAIM FOR RELIEF

FAILURE TO INTERCEDE UNDER 42 U.S.C. § 1983

37. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
38. Defendants EDWARD BARRETT and NYPD OFFICERS JOHN and JANE DOE #1-10 had an affirmative duty to intercede when Plaintiff's constitutional rights were being violated in defendants' presence by the misrepresentation and falsification of evidence regarding the circumstances surrounding plaintiff's arrest throughout all phases of the criminal proceedings.
39. Defendants EDWARD BARRETT and NYPD OFFICERS JOHN and JANE DOE #1-10 further violated plaintiff's constitutional rights when they failed to intercede and prevent the violation or further violation of Plaintiff's constitutional rights and the injuries or further injuries caused as a result of said failure.

40. As a result of the defendants' failure to intercede when Plaintiff's constitutional rights were being violated in defendants' presence, plaintiff sustained, *inter alia*, emotional injuries, Plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

FIFTH CLAIM FOR RELIEF

MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

41. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
42. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.
43. The aforementioned customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:
- A. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and,
 - B. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and,
 - C. fabricating evidence in connection with their arrest/prosecution in order to cover up police misconduct; and,
 - D. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing and regardless of probable cause, for the purpose of obtaining overtime compensation; and

E. failing to take reasonable steps to control and/or discipline police officers who lie, fabricate evidence, and/or commit perjury in order to cover up police misconduct and/or inflate arrest statistics.

44. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of Plaintiff.
45. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by Plaintiff as alleged herein.
46. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by Plaintiff as alleged herein.
47. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating Plaintiff's constitutional rights.
48. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the Plaintiff's constitutional rights.
49. The acts complained of deprived the Plaintiff of his right:
- F. Not to be deprived of liberty without due process of law;
 - G. To be free from seizure and arrest not based upon probable cause;
 - H. Not to have summary punishment imposed upon them; and
 - I. To receive equal protection under the law.

WHEREFORE, JAY GONZALEZ, Plaintiff, demands a judgment against the defendants on each cause of action in amounts to be determined upon the trial of this actions which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorney's fees inclusive of costs and disbursements of this action, interest and such other relief as appropriate under the law.

Dated: New York, New York
October 8, 2021

Respectfully submitted:

By: /s/ *Sydney O'Hagan*
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Suite 1000
New York, New York 10005
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TO:
CITY OF NEW YORK: CORPORATION COUNSEL, 100 Church Street, New York, NY 10007

EDWARD BARRETT (Shield # 9973), 52nd Precinct, 3016 Webster Avenue, Bronx, NY 10467

ATTORNEY'S VERIFICATION

I, **SYDNEY O'HAGAN**, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am attorney at the law firm of **SYDNEY O'HAGAN, ESQ.**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters wherein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff's is that Plaintiff is out of the county.

DATED: New York, New York
October 8, 2021



Sydney O'Hagan, Esq.